

AOC-496
Rev. 7-16
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Commonwealth of Kentucky
Court of Justice www.courts.ky.gov
KRS 431.078; 218A.275(8);
218A.276(8)



EXPUNGEMENT ORDER
(FOR MISDEMEANOR, VIOLATION, OR
TRAFFIC INFRACTION CONVICTION)

Case No. _____
Court _____
County _____
Division _____

COMMONWEALTH OF KENTUCKY

PLAINTIFF

VS.

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III
_____ NAME

DEFENDANT

_____ ADDRESS

() _____ PHONE NUMBER Jail ID Number _____ (optional)

Defendant's Birthdate: 1991-04-17 Defendant's SSN: _____ Arrest Date: _____

FINDINGS OF FACT

The Court, having held a hearing on Defendant's Petition for Expungement and being sufficiently advised, **FINDS:**

1. Defendant has moved this Court to expunge the above-styled case wherein Defendant was convicted of the following misdemeanor(s), violation(s), or traffic infraction(s):

CHARGE: _____ CHARGE: _____

CHARGE: _____ CHARGE: _____

CHARGE: _____ CHARGE: _____

2. ☐ The above-stated offense(s) is/are not a sex offense(s) or an offense(s) committed against a child;
3. ☐ Defendant has not been convicted of a felony or misdemeanor in the five (5) years prior to the filing of this Petition;
4. ☐ No proceeding concerning a felony or misdemeanor is pending or being instituted against Defendant;
5. ☐ The offense(s) is/are not subject to enhancement for a second or subsequent offense or the time for such enhancement has expired; AND
6. The petition ☐ is filed no sooner than five (5) years after completion of Defendant's sentence or five (5) years after successful completion of the defendant's probation, whichever is later; **OR** ☐ involves Defendant's 1st conviction for possession of controlled substances voided under KRS 218A.275(8); **OR** ☐ involves a conviction for possession of marijuana or synthetic drugs or salvia voided under KRS 218A.276(8).

7. Other:

1. ☒ The petition is **DENIED**. (Doc Code: OEXD) **The clerk shall refund \$50.00 of the fee(s) paid for expungement.**

2. ☒ The petition is **GRANTED**. (Doc Code: OEXG)

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Date: _____, 2_____. _____ Judge

Reset Form

_____, an above-named agency ordered to expunge records in our custody, hereby certifies that ☐ the **agency has no records** in its custody relating to the Defendant/matter OR ☐ the **agency has completed the expungement** as directed by this Court.

Date: _____, 2____. Agency Records Custodian: _____